

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X SUMMONS

ARAMUS PARKER,

Plaintiff,

- against -

CITY OF NEW YORK, POLICE OFFICER SAMUEL
LAVAUD, POLICE OFFICER NICHOLAS DEMETRIUS,
POLICE DETECTIVE ANDRE GRANT, POLICE
SERGEANT PAUL MELENDEZ, POLICE OFFICERS
JOHN DOE 1-5 (NAMES FICTIOUS AS TRUE NAMES
ARE CURRENTLY UNKNOWN),

Defendants.

Plaintiff designates Kings
County as the place of trial.

The basis of venue is:
The county in which the action
arose per CPLR 504(3)

The cause of action arose in
Kings County and is against
the City of New York

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve
a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of
appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons,
exclusive of the day of service, where service is made by delivery upon you personally within the
state, or, within 30 days after completion of service where service is made in any other manner.

IN CASE OF YOUR FAILURE TO APPEAR OR ANSWER, judgment will be taken
against you by default for the relief demanded in the complaint.

Dated: New York, NY
January 11, 2021

DEFENDANTS' ADDRESS:

THE CITY OF NEW YORK
Division of Law, Rm 1225 South
1 Centre Street
New York, NY 10007

POLICE OFFICER SAMUEL LAVAUD
76th PRECINCT
191 Union St, Brooklyn, NY 11231

POLICE OFFICER NICHOLAS
DEMETRIUS
76th PRECINCT
191 Union St, Brooklyn, NY 11231

POLICE DETECTIVE ANDRE GRANT
76th PRECINCT
191 Union St, Brooklyn, NY 11231

POLICE SERGEANT PAUL
MELENDEZ
76th PRECINCT
191 Union St, Brooklyn, NY 11231

PLAINTIFF'S ATTORNEY:



Masai I. Lord, Esq.
Attorney for Plaintiff
14 Wall St., Ste 1603
New York, NY 10005
718-701-1002

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

ARAMUS PARKER,

Plaintiff,

VERIFIED COMPLAINT

- against -

CITY OF NEW YORK, POLICE OFFICER SAMUEL
LAVAUD, POLICE OFFICER NICHOLAS DEMETRIUS,
POLICE DETECTIVE ANDRE GRANT, POLICE
SERGEANT PAUL MELENDEZ, POLICE OFFICERS JOHN
DOE 1-5 (NAMES FICTIOUS AS TRUE NAMES ARE
CURRENTLY UNKNOWN),

Defendants,

Plaintiff, ARAMUS PARKER, by his attorneys. LORD LAW GORUP PLLC, alleges upon knowledge as to himself and his own actions, and upon information and belief as to all other matters, as follows:

PRELIMINARY STATEMENT

1. Plaintiff ARAMUS PARKER brings this action for compensatory damages, punitive damages, and attorney’s fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and all attendant New York state common law and statutes, for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.
2. That at all times hereinafter mentioned, the DEFENDANT THE CITY OF NEW YORK was a Municipal corporation duly existing under and by virtue of the laws of the State of New York and doing business in the State of New York.
3. That at all times hereinafter mentioned, the DEFENDANTS POLICE OFFICER SAMUEL LAVAUD, POLICE OFFICER NICHOLAS DEMETRIUS, POLICE DETECTIVE ANDRE GRANT, POLICE SERGEANT PAUL MELENDEZ, POLICE OFFICERS JOHN DOE 1-5 were employees of the New York City Police Department, acting in their capacity as a police officers, and under color of law.
4. That all acts and incidents complained of herein occurred in Kings County, City, and State of New York.
5. That within 90 days after the state law claim of Malicious Prosecution accrued, Plaintiff served a Notice of Claim, in writing, sworn by the claimant, containing the name and post office address of the Plaintiff and Plaintiff’s attorney, the nature of the claim, the time when, the place where and the manner by which the claim arose, the items of damage and the injuries claimed

to have been sustained, to be served upon the DEFENDANTS by delivering a copy thereof to the person designated by law as a person to whom such claims November be served.

6. That Plaintiff appeared for a hearing pursuant to §50-H of the General Municipal Law on or about December 12, 2019.

7. That the DEFENDANTS have not adjusted, settled or paid the same.

8. That, on March 17, 2020, the Governor of the State of New York issues an Administrative Order AO/3/2020 tolling the CPLR, including but not limited to, the statute of limitations.

9. That subsequent administrative and executive orders continue the initial order suspending the statute of limitation.

10. That due to the Governor tolling the CPLR, this case is filed within the 1 year and 90 days as required by statute.

11. That all conditions and requirements precedent to the commencement of this action have been complied with.

12. That all conditions and requirements precedent to the commencement of this action have been complied with.

13. Pursuant to CPLR Section 1602(2)(iv), DEFENDANTS are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that DEFENDANTS owed the Plaintiff a non-delegable duty of care.

14. Pursuant to CPLR Section 1602(7), DEFENDANTS are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that DEFENDANTS acted with reckless disregard of the safety of others.

15. Pursuant to CPLR Section 1602(2)(iv), DEFENDANTS are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that DEFENDANTS are vicariously liable for the negligent acts and omissions of others who caused or contributed to the Plaintiff's damages.

16. That by reason of the foregoing, this Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have

jurisdiction herein, in an amount to be determined upon the trial of this action.

STATEMENT OF FACTS COMMON TO ALL CLAIMS

17. On or about July 5, 2017, Plaintiff Aramus Parker was near the Red Hook NYCHA Houses while a group of people were gathered outside.

18. Mr. Parker saw a young women who he used to work with at an after school center that had gone off to college, and went to catch up and say hi.

19. Soon after, Defendants pull up in a van, hop out of the van, and thrown Mr. Parker to the ground.

20. They then place him under arrest and put him in the police van.

21. Defendants then concocted a false story that enabled them to falsely charge Mr. Parker with, *inter alia*, gun possession.

22. They falsely stated that he closely observed Mr. Parker when they arrived at the scene, that he dropped a firearm from his person, that he ran away, and that he resisted arrest.

23. The Defendants testified falsely to these facts in the grand jury, and based upon this false testimony the Kings County District Attorney's Office secured an indictment.

24. Plaintiff was unlawfully arrested and charged with §§§§ 2650.03(3), 265.01-b(1), 205.30, 265.01(1) and AC § 10-125(B).

25. Plaintiff was arraigned on July 5, 2017 and Bail was set at \$7,500 cash over \$7,500 bond. Plaintiff was incarcerated for approximately two days prior to making bail.

26. None of the aforementioned acts were protected by legal privilege, nor were such acts legally justified. Said occurrence and the injuries and damages sustained by claimant were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.

27. Plaintiff was acquitted of the charges Penal Law §§§§ 2650.03(3), 265.01-b(1), 205.30, 265.01(1), AC § 10-125(B) by a jury on April 30, 2019.

28. Plaintiff was illegally was stopped, arrested and imprisoned by agents and/or employees of the City of New York, including, but not limited to, upon information and belief, agents employed by the New York City Police Department.

29. Plaintiff was then maliciously prosecuted by and at the direction of the said individuals.

30. None of the aforementioned acts are or were protected by legal privilege, nor were

such acts legally justified.

31. Said occurrence and the injuries and damages sustained by claimants were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.

32. As a result of the DEFENDANTS' conduct, Plaintiff has been caused to suffer, *inter alia*, severe anxiety, humiliation, and embarrassment, damage to personal reputation, apprehension, fear and distrust of the police, emotional and psychological trauma, loss of income, and violation of rights under the U.S. and New York Constitutions, and applicable statutory and case law.

**FIRST CAUSE OF ACTION:
MALICIOUS PROSECUTION UNDER FEDERAL AND STATE LAW**

40. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

41. At the aforementioned times and locations, was detained and held under the imprisonment and control of the DEFENDANTS and other unidentified officers of the NYPD present on the scene without probable cause.

42. DEFENDANTS commenced the criminal action against Plaintiff in the absence of any probable cause that a crime had been committed.

43. DEFENDANTS commenced this criminal action out of malice.

44. The criminal action against Plaintiff has terminated in his favor.

45. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.

46. That Plaintiff was conscious of the confinement.

47. That as a direct, sole and proximate result of the false arrest, imprisonment, and malicious prosecution, Plaintiff was caused to and did sustain humiliation and embarrassment, emotional and mental distress, moral and mental degradation, indignity and disgrace, injury to personal reputation, inconvenience, and the disturbance and disruption of life.

48. The acts and conduct of the DEFENDANTS were the direct and proximate cause of injury and damage to the Plaintiff and violated his statutory and common law rights as guaranteed by the law of the Constitutions of the State of New York and of the United States.

49. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional

distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and his standing within their community.

50. As a result of DEFENDANTS' impermissible conduct, Plaintiff demand judgment against DEFENDANTS in a sum of money to be determined at trial.

**SECOND CAUSE OF ACTION:
NEGLIGENT HIRING AND RETENTION**

51. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein, and he further alleges as follows.

52. DEFENDANT New York City are liable to Plaintiff because of its intentional, deliberately indifferent, careless, reckless, and/or negligent failure to adequately hire, train, supervise, retain and discipline its agents and/or employees employed by the New York City Police Department with regard to the duties described above.

58. The misconduct by DEFENDANTS described above and below, in particular evidences the failure to adequately hire, train, supervise, retain and discipline the Department's officers.

59. Consequently, DEFENDANT City of New York are liable to Plaintiff for damages.

**THIRD CAUSE OF ACTION:
NEGLIGENT AND INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

60. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein, and he further alleges as follows.

61. The DEFENDANT, THE CITY OF NEW YORK, including but not limited to all other DEFENDANTS, acted intentionally, recklessly, and with utter disregard to the consequences of their actions and caused severe emotional distress to Plaintiff through their actions.

62. Such actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulting in severe emotional distress to Plaintiff.

63. That as a result of said intentional and negligent acts, the Plaintiff received serious injuries in diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish, and psychological trauma and was otherwise injured.

64. By reason of the foregoing, DEFENDANTS are liable to Plaintiff for damages.

**FOURTH CAUSE OF ACTION:
VIOLATIONS OF THE RIGHT TO A FAIR PROSECUTION AND DUE
PROCESS OF LAW UNDER 42 U.S.C. 1983**

65. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

66. That DEFENDANTS falsely stated under penalty of perjury, and then forward this information to the Kings County District Attorney's Office ("KCDA"), information made to give the misleading and false impression that the arrest and detainment and prosecution of Plaintiff was legally justified.

67. That the aforementioned statements by the DEFENDANT, and actions by the DEFENDANT, consisted of fabricated and falsified information was utilized and relied upon by the Kings County District Attorney's Office, used to secure an indictment, and utilized at trial.

68. Furthermore, DEFENDANTS failed to timely disclose material favorable to the defense in contravention of Brady v. Maryland, 373 U.S. 83 (1963), Giglio v. United States, 405 U.S. 150 (1972), and their progeny.

69. The Individual DEFENDANTS acting individually and in concert and conspiracy, deliberately, and recklessly.

70. At all times DEFENDANTS were acting within their scope of their employment with the DEFENDANT, THE CITY OF NEW YORK, at the aforesaid location.

71. That this information caused Plaintiff to be denied his liberty and right to a fair prosecution in violation of fourth, fifth, sixth, and fourteenth amendments of the United States Constitution.

**FIFTH CAUSE OF ACTION:
FAILURE TO INTERVENE**

72. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

73. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

74. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

**SIXTH CAUSE OF ACTION:
VIOLATIONS OF THE NEW YORK STATE CONSTITUTION**

75. Plaintiff repeats and realleges each allegation contained in the preceding paragraphs as if fully set forth herein.

76. By virtue of the aforementioned acts, the Individual DEFENDANTS are liable to Plaintiff for violating his right to due process under Article I, § 6 of the New York State Constitution, and his right to be free of unreasonable and unlawful searches and seizures under Article I, § 12 of the New York State Constitution.

77. DEFENDANT THE CITY OF NEW YORK and the New York City Police Department are liable for these violations of the New York State Constitution under the principle of *respondeat superior*.

DAMAGES

78. As a direct and proximate cause of DEFENDANTS' actions and inactions, Plaintiff was deprived of his civil rights under the Fourth, Fifth, Sixth, and Fourteen Amendments of the United States Constitution and under the laws of New York.

79. This action seeks damages from on or prior to July 5, 2017 through the present.

80. The unlawful, intentional, willful, deliberately indifferent, reckless, negligent, wanton and/or bad-faith acts and omissions of DEFENDANTS caused Plaintiff to be forced to be maliciously prosecuted, deprived of liberty, deprived of relevant and exculpatory evidence, and subjected to illegal searches.

81. Such acts and omissions of DEFENDANTS caused the following injuries and damages to Plaintiff which were foreseeable to DEFENDANTS at the time of the acts and omissions and which continue to date and will continue into the future: susceptibility to physical assaults and batteries and physical assault and batteries, physical injuries, pain and suffering, mental anguish, emotional distress, psychological damage, loss of liberty, loss of relationships, loss of property, loss of companionship, loss of consortium, loss of guidance, loss of emotional and psychological development, humiliation, embarrassment, and degradation .

82. Such acts and omissions of DEFENDANTS entitle Plaintiff to compensatory and punitive damages.

WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the DEFENDANTS:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court November deem appropriate and equitable.

Dated: New York, New York
January 11, 2021

Yours, etc.

Lord Law Group PLLC



Masai I. Lord
Attorneys for Plaintiff
ARAMUS PARKER
14 Wall St., Ste 1603
New York, NY 10005
718-701-1002

ATTORNEY'S VERIFICATION

MASAI I. LORD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LORD LAW GROUP PLLC, attorneys of record for Plaintiff ARAMUS PARKER. I have read the annexed SUMMONS and COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff are not presently in the county wherein I maintain my offices.

DATED: New York, New York
January 11, 2021



MASAI I. LORD
Counsel for Plaintiff